

1. Indian IT Act 2000 & DPDP Act 2023 – Summary

Information Technology (IT) Act, 2000

Introduction

The Information Technology Act, 2000 provides legal recognition to electronic transactions and governs cybercrime and digital data security in India. It came into force on 17 October 2000.

Objectives

- Legal recognition of electronic records and signatures
- Facilitate e-commerce and e-governance
- Prevent cybercrime
- Promote secure digital communication

Key Provisions

- Digital signatures and electronic authentication
- Regulation of certifying authorities
- Legal validity of e-contracts
- Cyber offense penalties

Important Sections

- Section 43 – Unauthorized access and data damage
- Section 66 – Computer-related offenses
- Section 66C – Identity theft
- Section 66D – Online cheating
- Section 66E – Privacy violation
- Section 67 – Obscene content publication

Significance

The Act forms the legal backbone of India's digital and cybersecurity framework.

Digital Personal Data Protection (DPDP) Act, 2023

Introduction

The DPDP Act 2023 regulates the collection, storage, and processing of personal digital data in India.

Objectives

- Protect personal data
- Ensure lawful processing
- Provide individual data rights

- Establish accountability

Key Concepts

- Data Principal – Individual
- Data Fiduciary – Data collector
- Data Processor – Processes data

Key Provisions

- Consent-based data collection
- Purpose limitation
- Data minimization
- Data accuracy
- Storage limitation

Rights of Individuals

- Right to access data
- Right to correction and erasure
- Right to grievance redressal
- Right to withdraw consent

Penalties

Heavy financial penalties apply for non-compliance and data breaches.

Conclusion

The IT Act 2000 ensures cybersecurity and legal recognition of digital transactions, while the DPDP Act 2023 strengthens personal data privacy and protection in India.